

Natthoram v. State of U.P.

Allahabad High Court · Division Bench · 8 September 2014 · Writ-C No. 48052 of 2014 · **Writ disposed; EE to consider 6.14 installment representation**

HEADNOTE

Clause 6.14 of the Electricity Supply Code, 2005 empowers the Executive Engineer to extend an installment facility to consumers found to be in financial distress. A consumer who defaulted on regular bills for that reason was given liberty to apply afresh under clause 6.14; the Executive Engineer must then pass a reasoned speaking order expeditiously in accordance with law.

FACTUAL SUMMARY

The petitioner, Natthoram, filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and the electricity corporation. Counsel submitted that severe financial crises had prevented him from paying regular electricity bills, and that he was now ready and willing to pay the entire demanded amount in installments. The corporation was represented. The petition was heard and disposed of the same day on 8 September 2014.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for financial distress

HOLDING

Clause 6.14 of the Electricity Supply Code, 2005 empowers the Executive Engineer to extend the installment facility to consumers found to be in financial distress. The writ was disposed of with liberty to the petitioner to approach the Executive Engineer with a fresh application under clause 6.14; if made, the Executive Engineer shall pass a reasoned and speaking order expeditiously in accordance with law. ¶ 1

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress

Defaulting consumer relegated to a fresh 6.14 representation before the Executive Engineer, who must decide it by a reasoned speaking order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS IN FINANCIAL DISTRESS AND SHOULD BE GRANTED INSTALLMENTS UNDER CLAUSE 6.14

Left to the Executive Engineer on a fresh application, to be decided by a reasoned speaking order in accordance with law. ¶ 1